

21STCV10298 21STCV10298

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-29

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Case Number: 21STCV10298 Hearing Date: July 29, 2026 Dept: F46

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APPLICATION OF
PLAINTIFFS FOR PRO HAC VICE ADMISSION

Application filed July 6, 2026.

MOVING PARTY: Plaintiffs Kenneth Lawson and Monique
Jourdain-Lawson

RESPONDING PARTY: N/A

NOTICE: Defective.

RELIEF REQUESTED: Admission of James D. Montgomery, Jr.,
Esq. to appear as counsel pro hac vice.

RULING: Continued to August 26, 2026.

BACKGROUND/DISCUSSION

On July 6, 2026, Plaintiffs Kenneth Lawson and Monique Jourdain-Lawson filed an application to admit James D. Montgomery, Jr., Esq. to appear pro hac vice in this action.

A non-licensee of the State Bar may appear as counsel pro

hac vice in the Court's discretion. (Cal. Rules of Court, rule 9.40, subd. (a).) An active State Bar licensee must be associated as attorney of record. (Ibid.) The applicant must file a verified application together with proof of service by mail of the application and notice of hearing on all appearing parties and on the State Bar at its San Francisco office. (Id., subd. (c)(1).) The application must contain the information required by subdivision (d). (Id., subd. (d).)

Here, Montgomery resides and maintains his office in Illinois and states that he is not a California resident and does not regularly practice or conduct other business in California. (Montgomery Decl., ¶ 2.) He has been admitted to practice before the Supreme Court of Illinois since November 1, 1982, is a member in good standing, and has never been suspended or disbarred. (Id., ¶¶ 1, 3-4.) Montgomery has filed no application to appear pro hac vice in California during the preceding two years. (Id., ¶ 5.) California attorney John C. Allen IV is associated as attorney of record. (Allen Decl., ¶¶ 1, 3; Montgomery Decl., ¶ 6.) Allen also declares that the application and proposed order were delivered to the State Bar with payment of the \$50 application fee. (Allen Decl., ¶ 4.) The application therefore contains the information required by rule 9.40, subdivision (d).

The proof of service, however, does not comply with rule 9.40(c)(1). It is unsigned, does not identify the person who performed service, and does not list the State Bar as a recipient. It also reflects service by mail on July 7, 2026 for the July 29, 2026 hearing. Because section 1005(b) requires 16 court days' notice plus five calendar days for service by mail within California, the application and notice of hearing were required to be mailed by July 2, 2026. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 9.40, subd. (c)(1).)

CONCLUSION

The application is CONTINUED to August 26, 2026 at 8:30 a.m. in Department F46. No later than July 30, 2026, Plaintiffs must serve by mail a copy of the application and notice of the continued hearing on all appearing parties and on the State Bar at its San Francisco office and file a signed proof of service complying with Code of Civil Procedure section 1013a.